ISLAMIC LAST WILL AND TESTAMENT

Meeras · [Arabic]

Testator:	Maryam Specimen
Date of birth:	1980-07-22
Current address:	3 Imaginary Road, Lakemba NSW 2195
Jurisdiction:	New South Wales - Succession Act 2006 (NSW)
Islamic school:	Sunni (Schedule A - Hanafi, Shafi'i, Maliki, Hanbali)

Disclaimer

The content of this Will is intended to be used as a guide and is not intended to be comprehensive. It does not constitute legal advice or substitute for legal advice in any specific situation. The testator is advised to seek legal or other professional advice - and the counsel of a qualified Imam - before relying on its content, particularly where properties, assets, debts and other investments (including superannuation) are part of the inheritance. The publisher does not accept responsibility for any losses or disputes arising as a result of this Will.

Australian Government guidance on wills, executors, powers of attorney and estate plans: moneysmart.gov.au/plan-for-your-retirement/wills-and-powers-of-attorney

I, being of sound mind and memory, do hereby revoke any and all former Wills and codicils (as applicable) made by me, and do make, ordain, publish, and declare this as my Last Will and Testament.

I bear witness that there is none worthy of worship except Allah, and I bear witness that Prophet Muhammad (peace be upon him) is His servant and Messenger. I ask my relatives, friends and anyone reading this Will, whether or not they believe as I do, to respect my beliefs and wishes. Please do not obstruct or alter this document.

TESTATOR
Sign / initial

WITNESS 1
Sign / initial

WITNESS 2
Sign / initial

Preamble - Declaration of Faith

In the Name of Allah, the Most Beneficent, the Most Merciful. All praise is due to Allah, Lord of the Worlds, and peace and blessings be upon His noble Messenger Muhammad (peace be upon him), his family, and his companions.

P.1 I bear witness that no deity is worthy of worship but Allah alone, without partner, and I bear witness that Muhammad (peace be upon him) is His servant and Messenger.

P.2 I believe in Allah as He described Himself and as His Messenger (peace be upon him) described Him, without misinterpretation, comparison, or denial. I believe in the Angels, the Books, the Messengers, the Day of Judgment, Paradise and Hell, and in divine decree - its good and its evil.

P.3 I advise my family and fellow Muslims to fear Allah, adhere firmly to the Qur'an and authentic Sunnah, uphold the prayer at its fixed times, fulfil all other religious obligations, maintain family ties, avoid disputes, and be merciful with one another.

At the time of my death, I request

P.4 That a group of righteous Muslims be present during my final moments, reminding me to have good thoughts of my Lord and to hope for His mercy and forgiveness.

P.5 That I be gently prompted to say the testimony of faith - "La ilaha illa Allah, Muhammad Rasul Allah" - periodically.

Article 1 - Organ Donation and Autopsy

1.1 I do not approve the donation of any of my organs at the time of my death.

1.3 I do not approve autopsy or post-mortem of my body, unless required by Australian law.

Article 2 - Funeral and Burial

I direct that my funeral, burial, and all associated rites be carried out in accordance with the Sunnah of the Prophet Muhammad (peace be upon him) as set out below. Where any question arises, my executor shall seek the counsel of a qualified Imam.

2.1 After-death immediate steps

(a) My eyes and mouth shall be closed; my joints softened. The supplication "Inna lillahi wa inna ilayhi raji'un, Allahumma ajirni fi musibati wa akhlif li khayran minha" shall be made.

(b) My body shall be fully covered (unless I die while in Ihram, in which case the face and head are not to be covered).

(c) My debts (as recorded in Article 6) shall be paid immediately.

(d) My burial shall take place as soon as possible, preferably before sunset on the day of my death or the following day.

(e) I am to be buried in the country where I pass away, in a recognised Muslim cemetery or the Muslim section of a non-denominational cemetery. I expressly direct that my body NOT be repatriated overseas.

(f) People are to be informed of my death by asking for their du'a' and forgiveness.

(g) I disassociate myself from any acts contrary to the teaching of Islam - wailing, tearing clothes, hitting faces, and similar.

(h) Only my wife (if applicable) may mourn for four months and ten days ('iddah); others should not mourn beyond three days.

(i) I strongly object to any invasive post-mortem examination (autopsy) that involves cutting, removal of organs (save as authorised in Article 1), or embalming of my body. My executor or next of kin is to formally object to any such procedure unless required by law.

2.2 Ghusl (washing)

A trustworthy Muslim of the same gender as me - appointed by my executor - shall perform the ghusl in accordance with the Sunnah of the Prophet (peace be upon him).

(a) My dignity shall be maintained: 'awrah is not to be exposed; gloves shall be used when touching private areas.

(b) The intention of purification shall be made; wudu' (as for prayer) shall be performed; a cloth shall be used to clean my mouth and nose.

(c) My body shall be washed thoroughly with clean water and soap or sidr; the right side first, then the left, from top to bottom.

(d) The body shall be washed an odd number of times (at least once); the final wash with camphor or another natural scent. No alcohol-based perfumes or substances are to be used.

(e) If I am female: hair shall be undone, washed, and plaited into three braids.

2.3 Kafan (shrouding)

My body shall be shrouded in clean, white, simple cloth - three pieces for a man, five pieces for a woman. Silk and excessive cost are to be avoided. A pleasant non-alcoholic fragrance shall be applied to the shroud, preferably three times. My entire body shall be wrapped respectfully. If I die in Ihram, the two ihram garments are to be used.

2.4 Salat al-Janazah (funeral prayer)

A righteous Imam of correct belief and practice shall lead my Salat al-Janazah, as appointed by my executor.

The prayer is not to be performed between graves. As many Muslims as possible are to be called to attend, lining up in at least three rows. The Imam shall stand at the head (for a man) or the middle (for a woman).

2.5 Transportation to the grave

My body shall be carried with dignity - no loud noise, music, images, or incense. Preferably carried on the shoulders of men; a simple car may be used if not practical. Silence and reflection shall be maintained; those walking near the body shall walk at a moderate pace.

2.6 Burial procedure

A trustworthy male relative or mahram shall lower my body into the grave (for a female testator, only a mahram).

(a) A Lahd-style grave (side-pit) is preferred; a Shuq (trench) grave is acceptable only if a Lahd cannot be excavated.

(b) Forbidden burial times (sunrise, zenith, sunset) shall be avoided.

(c) The grave shall be deepened and widened adequately. No cushions, mats, or other items shall be placed inside the grave.

(d) On lowering my body, the words "Bismillah, wa 'ala Sunnati Rasulillah" shall be said.

(e) My body shall face the Ka'ba in Makkah.

(f) Three handfuls of soil shall be poured, starting at my head.

(g) The grave mound shall be modest - no higher than a hand-span; it is to be covered with earth only.

(h) The grave shall be marked with a simple stone bearing only my name; no writing or inscription unless required. NO cement or built structures, NO flowers, NO decorative items.

(i) Attendees are to remain at the graveside and make du'a' for forgiveness and steadfastness. No smoking, no wasteful gatherings.

2.7 After burial

Condolences are to be offered respectfully. My family and community are to look after my children, teach them the Qur'an and Sunnah, and make du'a' for me regularly. My grave may be visited without travel; the visitor is not to face the grave during du'a'. Upon visiting, the following supplication shall be said:

"Peace be upon the people of these abodes from the believers and Muslims. May Allah have mercy on those who have gone before us and those who are to follow. We shall, Allah-willing, join you. We ask Allah for safety for us and for you."

2.8 Pre-arrangements

I have not pre-arranged a burial plot or engaged with a specific burial organisation. My executor shall arrange burial at the nearest recognised Muslim cemetery, in consultation with my family and a local Imam.

2.9 Arbitration on Islamic procedures

In the event of any dispute regarding my burial, funeral rites, or any Islamic procedure mentioned in this Article, I direct that the matter be referred to the Australian National Imams Council (ANIC) or its nominated Islamic body, in addition to the arbitrator nominated in Article 4. The Islamic body's decision shall be considered binding by all parties, and I request my family and executor to comply with the ruling in accordance with Islamic law and guidance.

Article 3 - Executor

3.1 I hereby appoint the persons named below to serve as the executor(s) of my Will, in the order listed. I entrust the control of my entire estate to the executor who shall distribute it according to this Will and Islamic law of inheritance.

Primary Executor:

Name: Yusuf Specimen
Address: 3 Imaginary Road, Lakemba NSW 2195

3.2 If none of the above survive me or are unable or unwilling to serve, an Imam of the local Muslim community adhering to the Sunni school of thought shall be requested to become executor.

3.3 The executor shall execute the distribution of my estate in this order of priority: (1) payment of funeral and administration expenses; (2) payment of all my legal debts; (3) discharge of my religious obligations recorded in Article 6 (unpaid zakat, Hajj badal, fidyah and kaffarat), as first-priority directions of this Will; (4) payment of the Wasiyyah (Article 7); (5) distribution of the residue to my heirs by fara'id (Article 8 and Schedule A).

3.4 My executor has the power to sell my property - real, personal, or mixed - without needing a court order or bond.

3.5 My executor has the power to settle any claim for or against my estate, with all powers allowed by law including the power of assumption.

Article 4 - Arbitrator

4.1 Any disputes regarding this Will shall be adjudicated via private, binding arbitration by a neutral Arbitrator.

4.3 If none of the above is available, my executor shall request an Imam of the Sunni school to act as arbitrator.

4.4 The judgment of the arbitrator shall be final and legally enforceable, irrespective of the opinion of the disputing parties.

Article 5 - Guardianship of Minor Children

5.1 "My children" means the biological sons and daughters that I currently have, as well as any others hereafter born to me from any legally married spouse.

5.3 If my spouse does not survive me, my minor children shall be given to the custody of one of their adult siblings, or:

5.4 If none of the guardians named above survive me, or are able and willing to serve, custody and guardianship of my minor children shall pass in the following order of priority: first, to a Muslim next of kin - that is, a relative able and willing to raise them as Muslims; and only if no Muslim relative is available, to a practising Muslim from the community, chosen by my executor in consultation with a local Imam or recognised Islamic body. In no circumstance shall my minor children be placed in the care of a non-Muslim where a Muslim guardian is available.

5.5 In all cases, I urge that my minor children be raised as practising Muslims and not in any way indoctrinated into any other faith, religion, or atheistic beliefs.

Article 6 - Debt and Expenses

6.1 I direct my executor to: (A) return to the rightful owners all trust property in my care; (B) apply the assets of my estate to the payment of all legal debts, including expenses of last illness, funeral and burial, and the administration of my estate; and (C) after the payments in (B), discharge my religious obligations - unpaid zakat, Hajj badal, fidyah for missed fasts, and kaffarat of unfulfilled oaths - as first-priority directions of this Will, using the amounts recorded in the schedules of this Article.

In Islamic law the obligations in (C) rank as obligations owed to Allah. At Australian law they take effect as directions of the testator: they are discharged after my legal debts, funeral and administration expenses, and before the bequests in Article 7 and the distribution under Article 8.

6.2 No specific unpaid zakat has been recorded by me at the time of writing. My executor shall nonetheless review my financial records for any unpaid zakat and discharge it from my estate as a first-priority direction of this Will, after my legal debts and expenses.

6.6 No outstanding debts to creditors have been recorded by me. My executor shall nonetheless examine my financial records for any debts and discharge them as a priority obligation.

6.8 Burden of proof. Whoever claims that I owe them a debt shall prove it by showing a document with my signature on it, or by other evidence sufficient to satisfy my executor - except where the debt is acknowledged in this Article above. The Prophet (peace be upon him) said: "The soul of a believer is held in suspense by his debt until it is settled on his behalf." (Tirmidhi, Ibn Majah). I therefore direct my executor to settle my legal debts first, and then to discharge the religious obligations recorded in this Article, before the bequests in Article 7 and the distribution of

inheritance under Article 8.

Article 7 - Bequests (Wasiyyah)

7.1 I direct my executor to pay the following percentages from the remainder of my estate, after the payment of debts and expenses (Article 6). The total of all bequest percentages does not exceed 33% (one-third) of the remainder of my estate, per the hadith of the Prophet (peace be upon him): "One-third, and one-third is much."

No bequests are made. The entirety of the remainder of my estate (after debts) is to be distributed to my heirs according to fara'id.

7.2 If any of the above recipients are unable to receive their share, my executor shall donate that portion to a registered Australian Muslim charity organisation of their choice.

Article 8 - Distribution of the Remainder

8.1 The residue and remainder of my estate shall be distributed strictly in accordance with the tenets of Islamic law of inheritance as outlined in Schedule A attached to this Will. It is mandatory for my executor to engage a qualified Muslim scholar of the Sunni school of thought to verify the percentage shares of beneficiaries according to Schedule A.

8.2 Details about my qualifying beneficiaries shall be provided to the scholar/Imam who shall be calculating the estate distribution. Such a list shall also be included with the application for probate.

8.3 The remainder shall be distributed to my Muslim heirs whose relation to me has occurred through lawful marriage or birth, as per Islamic law of inheritance - with the identity of those heirs to be determined at the time of my death in accordance with clause 8.7 below. None of my heirs shall have the right to dispute this or any other aspect of the Islamic law of inheritance.

8.4 No part of the remainder shall be inherited by any non-Muslim relative, whether kin, in-law, spouse, parent, or child. Any non-Muslim relative is disregarded and disqualified.

8.5 Should I die as a result of murder, the adjudged murderer (principal or accessory) shall be disqualified from receiving any part of my estate.

8.6 Foetus clause. I direct and devise that any foetus, conceived before my death, whose relationship to me qualifies it to be an heir according to this Article, shall be considered an heir if the following condition is fulfilled: the foetus shall be born alive within 365 days (approximately 12.2 months) of my death.

Where such a foetus may exist at my death, my executor shall have the choice to either: (a) delay the entire distribution of the residue and remainder of my estate (after the execution of Articles 6 and 7) until after the birth of the foetus or the expiry of the waiting period; or (b) set aside the largest potential share of the foetus and distribute the remainder. Should the foetus be born alive but qualify for a lesser share, or should it not be born alive within the

period, any surplus set aside shall be returned to the estate and redistributed according to Schedule A.

Basis for the 365-day waiting period. The four Sunni madhahib differ on the maximum gestation period for inheritance purposes (Hanafi: up to two lunar years; Maliki, Shafi'i, Hanbali: up to four lunar years in their classical positions). Modern medical evidence places the upper limit of human gestation at approximately 42 weeks (~294 days). The period of 365 days adopted here aligns with contemporary jurisprudential opinions - including positions of the International Islamic Fiqh Academy (Jeddah) - that take a precautionary middle position between strict classical jurisprudence and medical reality. My executor is directed to consult a qualified Sunni Imam to verify the appropriate period in light of the specific facts.

8.7 Living-heir principle: distribution is determined at the time of my death. Notwithstanding any names of family members appearing elsewhere in this Will, or in any schedule, illustration, or computation attached to it or prepared at the time of its writing, I expressly direct and acknowledge the following:

(a) Inclusion of all qualifying heirs alive at death. Any qualifying Muslim heir who is alive at the time of my death - or, in the case of a foetus, born alive within the period specified in clause 8.6 - is entitled to their full Quranic share in accordance with Schedule A, regardless of whether that person is named anywhere in this Will. This expressly includes, without limitation: (i) any child or grandchild born to me after the execution of this Will; (ii) any spouse to whom I am lawfully married at the time of my death (including a spouse contracted after the execution of this Will); and (iii) any other relative whose relationship qualifies them as an heir under the Islamic law of inheritance as applied by the Sunni schools.

(b) Pre-deceased and disqualified heirs. Any person named in this Will who pre-deceases me, or who is otherwise disqualified at the time of my death (including by reason of clause 8.4 [non-Muslim relative] or clause 8.5 [murder]), shall not inherit. Their share shall be redistributed among the remaining qualifying heirs in accordance with Schedule A.

(c) Distant kindred (dhawu al-arham). Where no Quranic heir (dhu al-fard) and no residuary heir ('asabah) is alive at the time of my death, the residue of my estate shall pass to my distant kindred (dhawu al-arham) in the order prescribed by Islamic law, even where those persons are not named in this Will. In the complete absence of any qualifying kindred, the residue shall pass to a registered Australian Muslim charity selected by my executor.

(d) Illustrative percentages are not binding. Any percentage shares stated in this Will, in the computed share table immediately below, or in any other illustration prepared at the time of writing, are illustrative only and reflect my family circumstances on the date of signing. The final and binding percentage shares are those determined by application of Schedule A - with scholarly verification per clause 8.1 - to the actual list of qualifying heirs alive at the time of my death.

Classical maxim. The jurists of all four Sunni madhahib have held: "al-mirath la yathbutu illa bi'l-mawt" - inheritance is not established except by death. The Will captures my intentions; the inheritance itself crystallises at the moment of my death.

Computed shares as per Islamic Ruling, as at the date of signing (per clause 8.7(d), illustrative - not binding):

Heir	Relation	Share (fraction)	% of estate
Yusuf Specimen	Husband	1/4	25.00%
Daughter 1	Daughter	3/8	37.50%
Daughter 2	Daughter	3/8	37.50%
TOTAL		1	100.00%

Engine limits: this automatically computed table covers the most common inheritance configurations. Step-children, half-siblings, distant kindred and other unusual configurations may not be covered. Per Article 8.1, the executor MUST engage a qualified Muslim scholar to verify the shares before distribution.

TESTATOR
Sign / initial

WITNESS 1
Sign / initial

WITNESS 2
Sign / initial

Article 9 - Testamentary Trust

9.1 Any inheritance accruing to one or more minor children shall be held in Trust by the guardian (Article 5) until the minor attains the age of 18.

9.2 The guardian shall be empowered to hold, administer, and invest assets in Shariah-compliant investments only. Income and, where necessary, capital may be applied for the maintenance, education, and welfare of the beneficiaries.

Article 10 - Superannuation

10.1 Where I have not made a binding nomination, or where the binding nomination is not valid, I request the Trustee of my Superannuation Fund(s) to pay all death benefits into my estate for distribution to my heirs in accordance with Islamic law.

10.2 When the shares of my heirs are calculated under Article 8, the superannuation funds shall be used to pay my dependants first; for any other heirs, payments shall be settled with other assets.

10.3 If the superannuation amount is not sufficient to pay the shares of my dependants, my other assets shall be used to pay off their share.

Article 11 - Severability

11.1 If any part of this Will is determined invalid by a court, the other parts shall remain valid and enforceable.

Article 12 - Conclusion

12.1 This concludes my Last Will and Testament. "Then, whoever alters it [i.e., the bequest] after he has heard it - the sin is only upon those who have altered it." (Surah al-Baqarah 2:181).

12.2 I subscribe my name to this Will at the date and time below.

12.3 I do hereby declare that I sign and execute this instrument as my Last Will, willingly, as my free and voluntary act for the purposes herein expressed, and that I am of age or otherwise legally empowered to make a Will, under no constraint or undue influence.

Signature Block

To be signed in the presence of two adult witnesses, both present at the same time. Witnesses must then sign in the testator's presence. Sign every page using the same pen.

TESTATOR

Name: Maryam Specimen

Signature: _____ Date: _____

Important - New South Wales requires that witnesses NOT be beneficiaries of this Will.

WITNESS 1

Name: _____

Address: _____

Identification (optional): _____

Signature: _____ Date: _____

WITNESS 2

Name: _____

Address: _____

Identification (optional): _____

Signature: _____ Date: _____

Date of signing: _____

Day of the week: _____

Time: _____

Schedule A - Mawarith

The Islamic Distribution of the Estate

I ordain and direct that this Schedule be used as the only reference for the distribution of the residue and remainder of my estate, referred to in Article 8 of this Will.

> *"Allah instructs you concerning your children: for the male, what is equal to the share of two females. But if there are only daughters, two or more, for them is two thirds of one's estate. And if there is only one, for her is half. And for one's parents, to each one of them is a sixth of his estate if he left children."*
>
> **-- Surah An-Nisa' 4:11**

> *"For you is half of what your wives leave if they have no child. But if they have a child, for you is one fourth of what they leave... And for them is one fourth if you leave no child. But if you leave a child, then for them is an eighth."*
>
> **-- Surah An-Nisa' 4:12**

> *"One-third, and one-third is much. To leave your heirs wealthy is better than leaving them poor, begging from others."*
>
> **-- Sahih al-Bukhari 2742 · Sahih Muslim 1628 (Sa'd ibn Abi Waqqas)**

Case 1 - One Son or More, with Any Number of Daughters

* With no other relatives: sons and daughters take all the remainder; sons equal among themselves, daughters equal among themselves, and a daughter receives half a son's share.

* With wife: 1/8 to wife, the rest as above.

* With husband: 1/4 to husband, the rest as above.

* With father and mother: 1/6 to father and 1/6 to mother, the rest as above.

* With one parent: 1/6 to that parent, the rest as above.

* Additional sub-cases (1.g through 1.u) cover grandparents in place of absent parents - see full Schedule A.

Case 2 - Daughter(s) Only; No Sons

* Alone, one daughter: takes all remainder. Multiple daughters: share all remainder equally.

* With wife: 1/8 to wife; rest as above. With husband: 1/4 to husband; rest as above.

* With father: 1/2 to one daughter and 1/2 to father (or 2/3 to daughters equally and 1/3 to father).

* With both parents: 1/6 to mother, 1/3 to father, 1/2 to daughter (or 2/3 daughters, 1/6 mother, 1/6 father).

TESTATOR	WITNESS 1	WITNESS 2
Sign / initial	*Sign / initial*	*Sign / initial*

Case 3 - Children of Son(s), No Sons or Daughters

Apply Case 1 and Case 2 substituting daughter(s) of son(s) for daughter(s) and son(s) of son(s) for son(s).

Case 4 - Parent(s) and No Offspring

* Father alone (or with siblings, no children): father takes all.

* Father and wife: 1/4 wife, rest to father. Father and husband: 1/2 husband, rest to father.

* Both parents, no children, no siblings: 1/3 to mother, the rest to father.

* With spouse: spouse share first; then 1/3 to mother (or 1/6 if two or more siblings); the rest to father.

* Mother only, no children: she takes all the remainder.

Case 5 - Spouse Only; No Offspring, No Parents, No Grandfather

* Wife only: 1/4 to wife, the rest to a registered Muslim charity selected by the executor.

* Husband only: 1/2 to husband, the rest as above.

* Spouse with siblings: spouse share first; rest to siblings per the 2:1 rule.

Case 6 - All Other Cases (residual rule)

In all other cases, the remainder shall be distributed to the fixed-share heirs ('ashab al-furud), then to residuaries ('asabah), then to distant kindred (dhawu al-arham), in the order established in the published doctrine of the Sunni schools. In the complete absence of any qualifying kindred, the remainder shall pass to a registered Australian Muslim charity selected by my executor (clause 8.7(c)). Any question arising in the application of this Schedule shall be determined by the Arbitrator (Local Scholar) under Article 4.

I have read and understood Schedule A. Testator signature: _____ Date: _____

TESTATOR	WITNESS 1	WITNESS 2
Sign / initial	*Sign / initial*	*Sign / initial*

All three parties must be present together when each page is signed or initialled.